

RE: Abated Filing — Envelope No. 115456885 / Case No. 26-0537 — LAJ Impossibility — Request for Judicial Review Before Dismissal

From blake.hawthorne@txcourts.gov <Blake.Hawthorne@txcourts.gov>

To 'Katie Copeland' <katie@katiecopeland.com>

Date Friday, May 29th, 2026 at 2:00 PM

Ms. Copeland,

As I see it, you have two options: either (1) find a local administrative judge to issue an order giving you permission to file your petition; or (2) retain counsel to file the petition on your behalf. In the past we have accepted orders from the local administrative judge for the court that the original proceeding is related to. Your petition indicates that it is related to a case from a Tarrant County district court.

Texas Civil Practice and Remedies Code Section 11.103 states, “a clerk of a court may not file a litigation, **original proceeding**, appeal, or **other claim presented, pro se, by a vexatious litigant subject to a prefiling order....**” You have been determined to be a vexatious litigant and you are attempting to file an original proceeding pro se. Therefore, I cannot file this matter. The petition was mistakenly filed because it did not occur to the deputy clerk processing it that an attorney would have been declared a vexatious litigant. Texas Civil Practice and Remedies Code Section 11.1035 addresses what a clerk must do when a document from a vexatious litigant is mistakenly filed. We are endeavoring to comply with the statute and I suggest you do the same.

As for your request that an attorney review your filing, I am an attorney.

Over the past two days you have contacted me and our office repeatedly about this matter through phone calls and emails. I respectfully ask that you desist from this behavior.

Sincerely,

Blake Hawthorne

Clerk of the Court

Supreme Court of Texas

You don't often get email from katie@katiecopeland.com. [Learn why this is important](#)

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Mr. Hawthorne,

I am writing regarding Cause No. 26-0537 and the May 28 abatement under § 11.1035.

Respectfully, § 11.1035 does not apply to this filing. The petition was an original proceeding in aid of a pending appeal, not "new litigation" requiring Chapter 11 permission. It had also already been received, docketed, assigned a case number, and served by the Clerk before the later rejection/abatement.

In addition, Chapter 11's permission mechanism cannot operate here because § 11.102 does not identify any local administrative judge with authority over an original proceeding filed directly in the Supreme Court of Texas.

I respectfully request that the Clerk's Office submit this issue for review by the Court or appropriate staff attorney and confirm whether the abatement will be withdrawn or otherwise addressed before the ten-day dismissal period expires.

Thank you.

Respectfully,

KATHRYN "KATIE" COPELAND

ATTORNEY · AUTHOR · ACCESS ARCHITECT

• [\(817\) 789-8498](tel:(817)789-8498) • Katie@KatieCopeland.com • KatieCopeland.com



FEATURED PUBLICATION

*Access Is Not Advantage: Structural Integrity and Disability
Accommodation in State Courts*

American Bar Association · 2026

On Thursday, May 28th, 2026 at 7:06 PM, Katie Copeland <katie@katiecopeland.com> wrote:

Dear Mr. Hawthorne,

Thank you for your letter of May 28, 2026. I write to confirm receipt and to ask whether it was issued before or after my email to you this evening attaching the Motion to Confirm Filing and Vacate Erroneous Post-Docketing Rejection. If you have not yet had an opportunity to review that motion, I respectfully ask that you do so before any dismissal action is taken.

If, after reviewing the motion, you continue to require an order from the appropriate local administrative judge under § 11.102(a), I respectfully ask that you identify who that person is for the Supreme Court of Texas. I am prepared to comply immediately — but I have been unable to identify any such official, and Deputy Clerk Kathy was also unable to do so when I called this afternoon.

The motion is attached again for your convenience.

Respectfully,

Kathryn "Katie" Copeland

Texas Bar No. 24086056

(817) 789-8498

Katie@KatieCopeland.com

KATHRYN "KATIE" COPELAND

ATTORNEY · AUTHOR · ACCESS ARCHITECT



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- Katie@KatieCopeland.com
- KatieCopeland.com



FEATURED PUBLICATION

[Access Is Not Advantage: Structural Integrity and Disability
Accommodation in State Courts](#)

American Bar Association · 2026

On Thursday, May 28th, 2026 at 5:07 PM, Katie Copeland <katie@katiecopeland.com> wrote:

Dear Mr. Hawthorne,

I am writing at the direction of Deputy Clerk Kathy, who advised me this afternoon that email is the appropriate contact method for this matter.

Envelope No. 115456885 (filed May 28, 2026) was abated today under § 11.1035 with a ten-day deadline. The abatement notice directs me to obtain an order from the "appropriate local administrative judge" described by § 11.102(a). I am unable to comply with that condition because no such judge exists for the Supreme Court of Texas.

Section 11.102(a) defines the appropriate LAJ as "the local administrative judge of the type of court in which the vexatious litigant intends to file." The Supreme Court of Texas has no local administrative judge. When I raised this with Deputy Clerk Kathy today, she was unable to identify who the appropriate LAJ would be — because the official the statute requires does not exist for this Court. A ten-day condition that is structurally impossible to satisfy is not a condition; it is a dismissal mechanism with extra steps.

The Motion to Confirm Filing and Vacate Erroneous Post-Docketing Rejection, included in Envelope No. 115456885, presents three independent legal grounds why Chapter 11's prefiling restriction does not apply to this proceeding at all — grounds that can only be resolved by the Court, not administratively. I am attaching it here for your direct review.

I recognize you have made an initial determination on this. I am respectfully asking you to reconsider in light of the full motion, which may not have been available when that determination was made. If the Court cannot

accept this filing and the matter is dismissed, my only remaining avenue is an application to a United States Supreme Court Justice under 28 U.S.C. § 1651 — a step I would strongly prefer to avoid if there is a lawful path forward here.

This case involves an ongoing medical emergency affecting my fourteen-year-old daughter, whose physician-confirmed condition is deteriorating while enforcement of federal disability benefits is withheld. I do not raise this for sympathy but so the urgency of a ruling before the ten-day period expires is clear.

Respectfully submitted,

Kathryn Copeland

Texas Bar No. 24086056

(817) 789-8498

Katie@KatieCopeland.com

Attachments:

Motion to Confirm Filing and Vacate Erroneous Post-Docketing Rejection and Supporting Brief

Letter to Clerk

Emergency Petition for Writ of Prohibition

Notice of Presumed Indigence

Rejected filing email

KATHRYN "KATIE" COPELAND

ATTORNEY · AUTHOR · ACCESS ARCHITECT



• [\(817\) 789-8498](tel:8177898498) • Katie@KatieCopeland.com • KatieCopeland.com



FEATURED PUBLICATION

*Access Is Not Advantage: Structural Integrity and Disability
Accommodation in State Courts*

American Bar Association · 2026

From: Katie Copeland <katie@katiecopeland.com>

Sent: Friday, May 29, 2026 12:21 PM

To: Blake Hawthorne <Blake.Hawthorne@txcourts.gov>

Subject: Re: Abated Filing — Envelope No. 115456885 / Case No. 26-0537 — LAJ Impossibility — Request for Judicial Review Before Dismissal

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